

Justice K.S. Puttaswamy v. Union of India (2017)

Right to Privacy as a Fundamental Right under Article 21

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Citation: (2017) 10 SCC 1 | Bench: 9 Judges

Core Ratio: The Right to Privacy is an intrinsic part of the Right to Life and Personal Liberty under Article 21 and forms part of the freedoms guaranteed by Part III.

Key Takeaways for Students:

- Unanimously overruled MP Sharma (1954) and Kharak Singh (1962).
- Established the 3-Prong Proportionality Test: Legality, Legitimate State Aim, and Proportionality.
- Essential precedent for modern data protection, privacy, and digital liberty.